

प्रसार भारती PRASAR BHARATI
(भारत का लोक सेवा प्रसारक India's Public Service Broadcaster)
प्रसार भारती सचिवालय Prasar Bharati Secretariat
PRASAR BHARATI HOUSE, COPERNICUS MARG, NEW DELHI

F No. [E-280189] Misc-01/001/05/2025-TM&SO

Dated: 02-07-2025

OFFICE MEMORANDUM

Subject: Terms & Conditions pertaining to Contractual Engagement in Prasar Bharati – reg.

In addition to the terms and conditions outlined in the Offer Letter, the following terms and conditions shall apply to all contractual engagees at Prasar Bharati who are engaged under the Contractual Engagement Policy (CEP) of Prasar Bharati:

1. WORKING HOURS: Contractual engagees must adhere to the prescribed working hours in Prasar Bharati, which are 8.5 hours for five day week/7.2 hours for six day week with half an hour lunch break. They may, however, be required to work on holidays or extend their hours on working days if the exigency of work demands it, without any additional remuneration.

2. PERFORMANCE: If, during the period of contractual engagement, an engagee is found to be negligent or ineffective in performing their duties, the organization, after providing them an opportunity to justify their performance, may terminate the engagement upon payment of one month's remuneration in lieu of notice, as per Clause No. 3. The decision to terminate the contract based on performance below expectation will be at the sole discretion of the organization.

3. TERMINATION OF CONTRACT:

a. Contractual engagee may terminate the contract (resignation) before completion of its tenure by giving one month's notice or remuneration in lieu of the notice period to Prasar Bharati without assigning any reason. Prasar Bharati may at its discretion waive the notice period. However, accrued leave balance may be adjusted against the notice period i.e. the number of days of notice period may be waived off upto the extent of the number of days of available leave balance in this particular tenure of contract.

b. Prasar Bharati may, without assigning any reason, terminate the contract before completion of its tenure by giving one month's notice or remuneration in lieu of the notice period. The decision of Prasar Bharati shall be final and binding on them.

c. If Contractual engagee commits any breach of the terms of clauses 6/7/8/9 of this OM, Prasar Bharati would be at liberty to terminate the contractual engagement with immediate effects without assigning any reason.

d. On the termination (or expiry) of contract for whatever reason, Contractual engagee will return to Prasar Bharati all the documents/ record/ samples/ literature/ contracts /blueprints /notes /data or any official information (in form of papers or flash drive etc) in their possession relating to business affairs of Prasar Bharati.

गिरिश अग्रवाल
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4. DISCIPLINE AND CONDUCT:

- a. Contractual engagees are expected to work with full sincerity and dedication while maintaining discipline and decorum at the workplace.
- b. They are subject to the rules, regulations, orders, and instructions as may be laid down by the organization in relation to conduct, discipline and other matters for contractual engagees. Any act of misconduct or indiscipline will be treated seriously and may lead to immediate termination of the engagement. Cases of misconduct of serious nature/ Dereliction of Duties may lead to suspension of engagement for a period upto one month, as decided by the competent authority.
- c. While performing their duties, engagees shall observe utmost civility towards the visitors, senior officers, fellow employees and all such persons who will be dealing with them in official capacity.

5. PERSONAL INFORMATION:

- a. Contractual engagees must immediately communicate to their superior officer or controlling officer of any change in their current residential address along with police verification.
- b. All official communications will be made at the address last communicated by engagee in writing, which has been verified by the police or a police verification certificate last given by them.
- c. Engagees shall immediately communicate to your superior officer/controlling officer, any pre-existing Criminal case at the time of joining and as soon as possible if it is filed after joining.
- d. **At any point of time, if the personal particulars/ information given by contractual engagees in their resume/application is found to be false, or they have deliberately withheld some information, their contractual engagement shall be terminated without any notice or payment or compensation.**

6. CONFIDENTIALITY:

During the course of their contractual engagement, engagees may come across or have access to certain vital information, trade secrets, proprietary information, financial matters, organization related information that are sensitive to the interest of Prasar Bharati (confidential information). They shall not disclose or divulge except under legal obligations, any confidential information. The obligation to maintain confidentiality shall survive the expiry/termination of the contractual engagement. Engagees shall also refrain from sharing views on any such sensitive information on any prevailing social media sites or becoming part of any group on such social media apps which is detrimental to the interest of organization while performing their official duties.

7. COPYRIGHT/INTELLECTUAL PROPERTY RIGHTS:

Any product created/produce in any class of work during the course of official duties, including:

- a. Literary, dramatic, musical, or artistic works;
- b. Scripts, stories, videos, programs, etc.;
- c. Cinematography, films, concepts, ideas, and software; or

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d. Any other form of records

That are produced in the course of their contractual engagement in Prasar Bharati, shall remain the **exclusive property of Prasar Bharati** during and after their contractual engagement in Prasar Bharati and the engagee shall have no rights or claims over such works.

8. ENGAGEMENT IN OTHER BUSINESS:

a. During the period of contract with Prasar Bharati, engagees shall devote your whole time and attention to the service of the Prasar Bharati. For this reason, during the term of their contract, they shall not directly or indirectly own, manage, control, participate in, provide consultation, render services to or engage in the business of any other business entity or other organization (Whether as an owner, employee, officer, director, agent, partner, consultant or contractual assignment directly or indirectly, part-time or otherwise) whether for any consideration, in cash or in kind or otherwise.

b. Without prejudice to the above provision, they confirm that they have declared to Prasar Bharati all business interests existing on the date their contract commences, whether or not these interests are similar to or in conflict with the business or activities of Prasar Bharati. If these interests change during the term of their contract, they will promptly notify Prasar Bharati.

c. During the contract period, engagees shall neither associate themselves nor allow their work, name, image, or personality to be used by another organization without Prasar Bharati's express written consent.

9. NON-COMPETITION AND NON-SOLICITATION:

a. During the contractual period and for a period of 12 months after cessation of the contractual period with Prasar Bharati (the "Restricted Term"), Contractual engagee shall not, directly or indirectly, in any capacity, role or function, on their own behalf or behalf of any other person or organization, other than in performance of their duties and responsibilities on contractual engagement in Prasar Bharati solicit and/or attempt to solicit or accept business from:

i. Any current or former clients of Prasar Bharati to which contractual engagee provided services during the contract and or;

ii. Any client or prospective clients of Prasar Bharati to which contractual engagee was seeking to provide services or products, including participating in sales efforts of Prasar Bharati, during the period of contract;

Unless such services or products being provided to the clients or prospective clients by contractual engagee or any third party with whom they were employed are wholly unrelated to the services or products of Prasar Bharati as existing on the Separation Date and/or;

b. During the contractual period or for a period of 12 months after cessation of the contractual period, Contractual engagee shall not directly or indirectly, in any capacity or function, on their own behalf or behalf of any other person or organization:

Dilip Shinde
02.07.2025

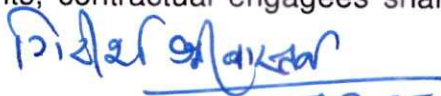
- i. Interfere or attempt to interfere in any way with Prasara Bharati's relationships with any of its clients, service providers employees, suppliers, experts, key advisors or consultants;
- ii. Induce or attempt to induce any of the above mentioned persons or organizations to terminate or change the terms of his/her/its dealing with Prasara Bharati;
- iii. Participate in or be employed by a business similar as that of Prasara Bharati;
- iv. Solicit or endeavor to entice away any person working in Prasara Bharati; or
- v. Accept orders or business from any person who was a client or potential client of Prasara Bharati and who dealt with or had dealing with contractual engagee in this period or with whom to their knowledge any member of staff or other persons engaged on contract in Prasara Bharati, had dealing in this period. (This restriction shall not apply to the provision of goods or services, which do not compete with the business of Prasara Bharati.)

10. CODE OF CONDUCT FOR CONTRACTUAL ENGAGEES IN RESPECT OF SOCIAL MEDIA:

Prasara Bharati respects the right to freedom of speech and expression of all its contractual engagees and such right duly extends to use of social media by them, viz. Face Book, WhatsApp, etc. However, in the interest of the organisation as also overall public interest, it has been considered appropriate to prescribe following code of conduct for scrupulous observance by all the contractual engagees while using social media.

a. Use of Social Media in Individual Capacity:

- i. Language used in the posts shall be polite, courteous and dignified. Use of foul or abusive language shall be avoided.
- ii. Content posted through social media accounts of engagees shall not be prejudicial to the sovereignty and integrity of India, the security of the State, friendly relations with foreign States, public order and decency or morality. Such content shall also not be in contempt of court, defamatory or likely to cause incitement to an offence.
- iii. Posted content shall not intrude into privacy of other individuals. Revealing personal details of other persons shall be avoided.
- iv. Contractual engagees shall clearly reveal their true identity in their personal social media accounts. Running personal accounts in fake names is not acceptable.
- v. Contractual engagees shall not post their personal comments or views on official social media platforms of Prasara Bharati.
- vi. Any view, comment, or post in conflict with organizational interest and reputation shall be considered as serious indiscipline.
- vii. While expressing views, making comments and forwarding posts from their personal social media accounts, contractual engagees shall not give


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any impression, either directly or indirectly, that they are doing so in their official capacity or expressing official viewpoint of Prasar Bharati.

b. Use of Social Media in Official Capacity.

i. Contractual engagees, who are dealing with official social media accounts of Prasar Bharati in their official capacity, shall strictly confine themselves to their assigned duties and responsibilities in respect of such accounts.

ii. No view or opinion shall be expressed by contractual engagees on the social media in their official capacity, unless specifically authorised to do so. If and when so authorised, views or opinions thus expressed, shall strictly conform to the brief given in this regard by the competent authority.

c . **Usage of Smartphone:** Usage of Smartphone in office for the purpose of recording either audio, video or photography or scanning of any form of official documentation is prohibited.

d . **Usage of Office Internet:** Office internet shall be used solely for official work, and personal use, including social media, shall be avoided.

The above code of conduct as revised subsequently in any other policy/order will be applicable to all contractual engagees. Any violation of code of conduct as prescribed above shall be considered as misconduct and may invite appropriate action against the delinquent engagee. Depending on gravity of misconduct, such action may include either temporary suspension of contract for a specified period as determined by Prasar Bharati at its sole discretion, or outright termination of contract.

11. GUARANTEE BOND ON RECOVERY OF HIGH-VALUE TRAINING COST:

If an engagee receives high-value training by Prasar Bharati during their tenure, the following clauses shall be applicable:

a. They commit to serving Prasar Bharati for two years following the training's completion. If they opt out of the said contractual arrangement, the amount deposited with Prasar Bharati, in the form of security, would stand forfeited.

b . The cost of training shall be ascertained on the basis of payment made to vendor, number of contractals attended, number of regular employees deployed etc.

c. If Prasar Bharati offers to renew the contract(whether with same or higher remuneration), it shall be obligatory on the engagee to accept the same at least up to completion of two years period from the date of end of high value training imparted.

d . As a security, an Undated Cheque would be enclosed alongwith the Bond (**Appendix A**). Prasar Bharati will return the undated cheque on completion of two year's contractual service from the date of end of training program. Non submission of bond within 3 working days of receipt of orders of training shall result termination of contract without notice period.

e . In case services of the engagee are terminated by Prasar Bharati due to


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any reason viz poor performance, disciplinary matters, mis-conduct, violation of any clause of offer letter or this OM etc, the amount deposited in the form of security with Prasar Bharati shall stand forfeited. However, such forfeiture shall take place on the recommendations of a Committee headed by ADG level officer, which shall decide the case on its merit.

f . In case the engagee is forced to leave the organization on account of permanent disability or life threatening disease or death, the conditions and the situation governing such events shall be decided at the sole discretion of the Competent Authority of Prasar Bharati, subject to perusal of relevant documents as proof and support thereof. Prasar Bharati in such an eventuality may return the amount of bond.

g. If the engagee leaves Prasar Bharati before completion of two years period from end of high value training, the fact of violation of commitment may be mentioned in the relieving order as well as in the experience letter. Prasar Bharati also reserves the right to inform the same to their new employer.

12. OTHER TERMS:

a. If Contractual engagees are required to travel outside headquarters in connection with official duties during the period of their engagement, they will be entitled to draw TA/DA rules as amended from time to time.

b . Prasar Bharati lays emphasis on all statutory and regulatory compliance and contractual engagees must ensure compliance with various statutory and regulatory requirements in their area of operations during the whole period of contract with Prasar Bharati.

c . Any subsequent amendments to Prasar Bharati's policy with regard to the terms of engagements will also be applicable to the engagee during the tenure of the contract.

This issues with the approval of CEO, Prasar Bharati.


(गिरीश कुमार Girish Kumar) 02.07.2025

उप निदेशक (टी.एम.&एस.ओ.) Deputy Director (TM&SO)

To,

- i. DG: Akashvani, DG: DD, DG: NSD Akashvani, DG: DD News
- ii. Zonal Head (Admin), North/East/West/South/NE Zone, PBS
- iii. ADG(B&A), ADG (NABM), DDG (CPC)
- iv. DDG (Sports), DDG (Sales)
- v. Director (Central Archives)/ Director (PBNS) / Director(RNU), DD News
- vi. SO (S-V), DG: Akashvani/ SO (CMS), DG: DD/ DD (News), DG: NSD/ AD(HR), DG: DD News

Copy to:-

Sr. PPS to CEO, Prasar Bharati.

APPENDIX 'A'

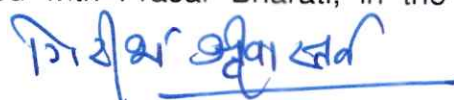
Format of bond for recovery of cost of high value training imparted

By this Bond, I _____ s/o
_____ aged about _____ resident of
_____ (hereinafter called "the Obligor"), bind myself to pay
to Prasar Bharati on demand a sum equal to the five month's remuneration/actual
cost of training (whichever is lower), in the event of leaving Prasar Bharati before
completion of two years period starting from the end of the high value training
imparted to me. Name of Training is _____.

And Whereas a term of contractual engagement _____ has
promised to Prasar Bharati not to misuse his/her position by disclosing to any
person the knowledge acquired by him/her during the period of undergoing the
above stated high value training and has agreed to execute this Bond.

And whereas for the better protection of Prasar Bharati, the Obligor has agreed to
execute this Bond with such condition as mentioned hereunder:-

1. That I Agree to abide and follow all
the terms and conditions stipulated in the Term of the Contract, Addendum of
the contract signed by me.
2. That the above payment shall be in addition of any other liability on account
of Notice Period/Excess Payment/Non return of Asset.
3. That after making payment and on accepting the same by Prasar Bharati OR
on completion of two years' contractual service after end of high value
training, the above obligation shall be void and of no effect, otherwise it shall
be and remain in full force.
4. The liability of payment under this obligation shall not cross the amount equal
to five months' remuneration or appropriate cost of training of the Obligor
(whichever is lower).
5. As a security, an Undated Cheque no _____ of _____
bank for amount of Rs _____ (In words
_____) is enclosed. PB will return
the undated cheque on completion of two year's contractual service from the
date of end of training program.
6. That I bind myself to serve Prasar
Bharati for a period of 2 years from the end of the high value training
imparted to me. In the eventuality I resort to opt out of the said contractual
arrangement, the amount deposited with Prasar Bharati, in the form of



security, would stand forfeited.

7. The bond shall in all respects be governed by the laws of India for the time being in force. Any dispute arising from this bond will be subject to the exclusive jurisdiction of courts/tribunals in Delhi.

Signed and delivered by the Obligor above named Sh/Ms.....

In presence of

Witness:-

ACCEPTED

For and on behalf of Prasar Bharati

गिरिश जे. वास्तव